

G.Uma Maheshwari Devi vs Naresh Gaddapati on 17 October, 2022

THE HONOURABLE SRI JUSTICE SAMBASIVA RAO NAIDU

TRANSFER CIVIL MISCELLANEOUS PETITION NO.227 OF 2022

ORDER :

This petition has been filed by the petitioner/wife under Section 24 of the Code of the Civil Procedure, 1908 with a prayer to transfer the divorce petition vide H.M.O.P.No.74/2022 filed by the respondent/husband from the file of the Senior Civil Judge, Nalgonda, to the file of the Principal Family Judge, Rangareddy District at L.B.Nagar.

2. The petitioner herein filed her own affidavit in support of the petition with the following averments:

The marriage between the petitioner and the respondent was performed on 24.11.2017 as per the caste customs and according to the Hindu religious system, which was an arranged marriage and the same was consummated. The petitioner claims that at the time of the marriage, the respondent herein and his mother demand a sum of rupees one crore as dowry, apart from other valuable items. Her parents agreed to give Rs.50 lakhs along with 40 tulas of gold and 20 tulas of silver, etc. The petitioner has also claimed that her parents celebrated the marriage by spending more than Rs.50 lakhs. After one year of her marriage, the mother of the respondent i.e., mother-in-law of the petitioner was diagnosed with uterus cancer and she has obtained treatment at Hyderabad and thereby, the sister of the respondent also stayed in their house for about three months and during that period, the respondent, his mother and sister started harassing the petitioner for additional dowry of Rs.50 Lakhs. She has also claimed that to meet the demand of the respondent for additional dowry, she has pledged her gold ornaments and arranged Rs.10 Lakhs.

In view of the dowry harassment, she filed a complaint before the police on which a case was registered against the respondent and his family members for the offence under Section 498A of the Indian Penal Code, 1880, (in short 'IPC') which is subject matter in C.C.No.510/2022 on the file of the V Additional Metropolitan Magistrate, L.B.Nagar, Rangareddy District. It seems that the petitioner has filed a petition under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights vide F.C.O.P.No.1889/2021, which is pending before the Principal Family Judge, L.B.Nagar, Rangareddy District. She has filed another case under the provisions of Domestic Violence Act, 2005, which was registered as D.V.C.No.53/2022. She has also filed another petition under Section 125 of the Criminal Procedure Code, 1973 for maintenance vide M.C.No.1/2022. The petitioner has claimed that it is very

difficult for her to travel all the way from Hyderabad to Nalgonda and as she apprehends danger from the hands of the respondent, she sought for transfer of the divorce case filed by the respondent from Hyderabad to Nalgonda. Another reason explained by the petitioner for transfer is that the complaint lodged by the petitioner herein against the brother of the respondent with an allegation that he outraged her modesty and thereby, a case for the offence under Section 354 of IPC was registered.

3. The respondent filed a counter opposing the petition stating that the father of the petitioner was retired from Police department, who has influence. The respondent has claimed that he was subjected to harassment by the petitioner. Learned counsel for the respondent has filed some photographs and informed the Court that the petitioner beat the respondent and caused bleeding injuries. The petitioner being a Doctor wanted her own hospital and thereby, the respondent established a clinic under the name of 'Maa Clinic' at Kothapeta by spending Rs.10,00,000/-. The petitioner has got sufficient funds. At the instance of her father, she neglected the respondent and refused to join him. The respondent is having two brothers, who are suffering from mental illness and one of his brothers committed suicide, and his mother is suffering from Cancer. Therefore, it is highly difficult for him to travel to Hyderabad and there is a threat to the respondent in the hands of the father of the petitioner. Thereby, sought for dismissal of the petition.

4. Heard both parties.

5. Now, the point for determination is:

Whether there are sufficient grounds for transfer of H.M.O.P.No.74/2022 from the file of the Senior civil Judge, Nalgonda, to the file of the Principal Family Judge, Rangareddy District at L.B.Nagar ?

6. There is no dispute about the marriage between the parties. As per the averments made by the petitioner herself in the petition, she has filed one maintenance case, one case under the provisions of the Domestic Violence Act, 2005, a criminal case for the offence under Section 498A of the IPC, apart from, a petition under Section 9 of the Hindu Marriage Act, 1955.

7. Learned counsel for the respondent states that having filed a case under Section 498A of IPC, another complaint against the brother of the respondent alleging that he outraged her modesty, the petition filed by the petitioner under Section 9 of the Hindu Marriage Act, 1955 is only to harass the respondent.

8. Admittedly, the father of the petitioner had worked in Police department and the petitioner is a Medical Doctor, therefore, she cannot claim that she has no means and she is afraid by the respondent against whom she already filed complaints and cases. It is true in a petition filed for transfer of divorce case, the Court has to see the interest of the wife but here in this case, the wife is not an unemployeed and without any means, as she is a Doctor and the place where the respondent filed the divorce case is not far away place and that she need not attend the Court for all the adjournments whereas the respondent has to attend the criminal cases filed by the petitioner.

Therefore, on the ground of inconvenience, the petitioner cannot claim the transfer of the case.

9. In view of the arguments advanced by learned counsel for the respondent though it is not accepted about the contention of the respondent that there is a threat from the father of the petitioner, the same has to be considered while ordering the transfer petition. Therefore, this Court feels that there are no grounds for transferring the case filed by the respondent as such this petition is liable to be dismissed.

10. Under the circumstances narrated hereinbefore, the petition is dismissed. No costs.

Pending miscellaneous applications, if any, shall stand closed.

_____. JUSTICE SAMBASIVA RAO NAIDU DATED
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